

+IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 1214 OF 2015

Head Master/Principal (In-charge), Border
Guard Public School and College, Former
Rifles High School, Khagdohor,
Mymensingh

....Defendant No. 19-Appellant-Petitioner
=Versus=

Mr. Rafiqul Islam Head Master Border
Guard Public School and College,
Khagdohor, P.S. Kotwalli, Dis:
Mymensingh and others

.... Plaintiff-Respondent-Opposite Parties

Mr. Md. Humayun Kabir Ahsan with
Mr. Md. Mosfequs Salehin

..... For the Petitioner

Mr. Mohammad Ali Zinnah with
Mr. Md. Hanif

..... For the Opposite Parties

Heard on: 07.05.2017 and 08.05.2017

Judgment on: 18.05.2017.

At the instance of the present defendant No. 19- appellant-
petitioner, this Rule has been issued calling upon the opposite party
No. 1 to show cause as to why the impugned judgment and decree
dated 14.01.2015, passed by the learned Additional District Judge, 1st
Court Mymensingh in Other Class Appeal No. 35 of 2014 dismissing

the appeal and affirming those dated 01.12.2013 passed by learned Senior Assistant Judge, Sadar, Mymensingh in Other Class Suit No. 198 of 2009 decreeing the suit should not be set aside.

The relevant facts for disposal of this Rule, inter-alia are that the present opposite party No.1 Md. Rafiqul Islam as the plaintiff filed the Other Class Suit No. 198 of 2009 in the Court of learned Senior Assistant Judge, Sadar Mymensingh for a mandatory injunction and declaratory decree against the present petitioner. The plaint Case is that the Rifles High School at present (Border Guard Public School and college), Sadar, Mymensingh was established in the year of 1995. The present plaintiff opposite party was appointed as the Head Master of the said school. When he has been performing his duties as the Head Master he was suspended from his post by Mr. Mahmudun-Nabi on behalf of the Managing Committee by a letter dated 30.07.2008 without giving any prior show cause notice. Accordingly, he handed over charge to the defendant No. 10 Md. Fokrul Islam. The defendant No. 2 the Chairman of the Managing Committee constituted an inquiry committee on the basis of some allegations against him. After inquiry by the inquiry committee the present opposite party No. 1 was

found guilty, therefore, the Managing Committee terminated/dismissed him from the post of Head Master by the letter dated 09.07.2009. This Suit has been filed on 03.08.2009.

The present petitioner as the defendant contested the suit by filing a written statement contending inter-alia that, the suit has been pre-matured and barred by the Rule of exhaustion. The Border Guard School is a specialized school The present plaintiff opposite party No. 1 became the Headmaster of the School but there were some allegation against him as to the misconduct in violation of law and he was cautioned earlier. Subsequently, there were several allegations against him, including, financial irregularity and professional misconduct. After considering the above allegations the Managing Committee of the School decided to suspend him from his post and the Managing Committee approved a resolution thereabout. After inquiry as per law he was dismissed from the service by resolution taken by the Managing Committee of the school on 09.07.2009.

After hearing the parties the learned trial court by its judgment and decree dated 01.12.2013 decreed the suit. Being aggrieved the present petitioner as the appellant preferred the Other Class Appeal

No. 35 of 2014 in the Court of learned District Judge which was heard by the learned Additional District Judge Court No. 1, Mymensingh on transfer who by the judgment and decree dated 14.01.2016 dismissed the appeal thereby affirmed the judgment and decree passed by the learned trial court. This revisional application has been filed challenging the said judgment passed by the appellate court below and the Rule has been issued thereupon.

Mr. Md. Humayun Kabir Ahsan, the learned Advocate along with the learned Advocate, Mr. Md. Mosfequs Salehin, appearing for the present petitioner, submits that, the opposite party No. 1-plaintiff filed the suit against the order of dismissal which was finally decided by the Appeal and Arbitration Committee of the Board and for which it is barred by “Exhaustion rule”, as the case was pre-mature.

The learned Advocate also submits that, the opposite party No. 1 was dismissed after a properly constituted inquiry committee which found him guilty after giving him reasonable opportunity of being heard and he was dismissed as per the provisions of the Recognized Non-Government Intermediate College Teachers (Board of Intermediate & Secondary Education) Terms & Conditions of Service

Regulations, 1979 in which there was neither any illegality nor any procedural irregularity.

The learned Advocate also submit that both the Court's below committed error of law and fact of the present case by non-considering and misconstruing the relevant and appropriate law applicable in this case, therefore, came to an unlawful conclusion by passing the affirming judgments which are liable to be set aside for the interest of justice.

The Rule has been opposed by the present opposite party No. 1, Mr. Md. Rofiqul Islam without filing any counter affidavit.

Mr. Mohammad Ali Zinnah the learned Advocate, along with Mr. Md. Hanif, submits that the present opposite party No.1 was suspended without serving any show cause notice and thereafter dismissed him from the service as the Headmaster of the school without explaining any reason and without giving any opportunity to defend him against the allegations brought as per provisions of law, therefore, the dismissal order is an illegal order in the eye of law.

The learned Advocate also submits that, the present opposite party No. 1 was entitled to a notice before 7(seven) days giving him

the opportunities to reply but the notice was given only one day which is a violation of regulations 14 of the Service Regulation, 1979. Moreover and illegal, investigation committee was formed by the 4(four) members without including a members from the teaching profession as per provision of the said Regulation, 1979. Therefore, the present opposite party has been punished without proving any allegation brought against him, therefore, the present Rule is liable to be discharged.

The learned Advocate also submits that, the present petitioner, the managing committee of the school communicated the dismissal order without obtaining any approval from the board, as per the requirements of the Services, Regulations, 1979.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexures therein and also considering the materials in the lower court record, it appears to this court that, the present plaintiff-opposite party No. 1 filed the Title Suit for a decree of mandatory injunction and declaration as to the dismissal order was

illegal and he should be reinstated in his post as the Headmaster. The admitted position in this Rule is that the present opposite party No. 1 was appointed as the founder Headmaster of the school in the year of 1995. The school was thereafter upgraded to Junior High School in the year of 1995 and it was thereafter permitted to carry on academic activities for class nine, eleven in the year, 1996. It is also admitted by the parties that on 30.07.2008 the opposite party No. 1 was suspended from his service (Exhibit-11 and Exhibit-Kha) as many as 6(six) allegations were brought against him including financial irregularity, inefficiency in administrative and management, academic inefficiency professional misconduct among others.

There are some differences and disputes between the parties which are, service of show cause notice prior to suspension and dismissal, formation of an inquiry committee as per provision of law, proving and disproving the allegations brought against him and finally effectiveness of the dismissal order by operation of the provisions of “The Recognised Non-government Secondary School Teachers (Board of Intermediate and Secondary Education, Dhaka) Terms and

Conditions of Service Regulations, 1979” (the service regulations, 1979.)

I now will embark upon the above disputed matters between the parties. There are some contentions by the opposite party No. 1 that the show cause notice was served without allowing him the prescribed period for providing a reply by the present petitioner which is a violation of the Regulation 1979. In this regard Regulation 14(fourteen) provides the specific procedures for drawing up any proceeding within the stipulated period of time allowing to provide any reply of a show cause notice. The same provision of law also contains to hear in person by a competent authority as an inquiry committee containing specific members in the committee by including a member from the teaching profession. In the instant case the present opposite party raised a serious question about the stipulated period of time for replying a show cause notice as well as formation of an inquiry committee therefore he claim of serious violation of the above law which prompted him to filed the suit for declaring the order of dismissal in violation of the provisions of law as illegal and also claimed for reinstatement in his service.

In view of the above matters, the learned trial court and the Appellate Court below given their findings upon those factual aspects before a dismissal order taken by the managing committee of the school. I am surprised to see that, both the Courts below misread and misconstrued the provisions of law as provided in the said Service Regulations, 1979. Both the Courts found that there were same violations of the natural justice because of non-applications of the provision under the said Regulation. However, the courts below absolutely misinterpreted and misconstrued the regulation 12(twelve) of the Service Regulation, 1979 which reads as follows:

“12. Power to impose penalty.- The power to impose penalty upon a teacher under Regulation 11 shall vest in the authority competent to make appointment:

Provided that the penalties of dismissal or removal from service shall not be imposed unless the proposal for such penalty is examined by the Appeal and Arbitration Committee and approved by the Board.”

The above provisions of law clearly mentioned several stages for imposition of any serious penalty of dismissal or removal from the

service to any teacher from a non- Government Primary and High School. The required stages are as follows:

- I. Imposition of a penalty of dismissal or removal to a teacher is vested upon the authority competent to make appointment in the instant case it means the school managing committee as the appointing authority has power to impose any dismissal or removal as order upon any teacher.
- II. The above penalty cannot be impose upon any teacher without any approval for such a penalty to be examined by the Appeal and Arbitration Committee under the Board.
- III. After examination of the said penalty as dismissal or removal from service must be presented to the board of Intermediate and Secondary Education, Dhaka for its final approval.

I am of the opinion that a penalty of dismissal or removal from service to a teacher of any Non-Government Primary and High School can finally be imposed after completing the above steps, otherwise, any penalty imposed without any of the above steps cannot be considered as a final and conclusive decision.

In the instant case, the present opposite party No.1, Md. Rafiqul Islam was appointed in the year of 1995, he was suspended from the

service as the Headmaster on 30.07.2008 and he was dismissed from the service on 09.07.2009 by the managing committee of the Border Guard Public High School, Sadar, Mymensingh. From the above 3(three) stages/steps for imposing any penalty for dismissal or removal by the appointing authority has been completed but the other two steps remained to be taken for finality or the order of dismissal under the above provision of law. Therefore it appears from the record that the dismissal order dated 09.07.2009 Exhibit-16 was passed by the managing committee of the Border Guard School which was communicated to the present opposite party No. 1 on behalf of the managing committee and this suit has been filed by the present opposite party on 03.08.2009 challenging the legality of the dismissal order without waiting to the finality of the penalty of dismissal by following the above mentioned steps as per requirements of law. Therefore a Civil Court should not entertain any civil proceeding when there are statutory remedy /remedies are available who has a complete authority to examine or re-examine the legality of all the matters of principles of natural justice under regulation 12. In my view the Courts below have unnecessarily intervene into a matter of

facts without properly understanding the provisions of law in this regard therefore unnecessarily wasted time of the court and caused sufferings to the parties concerned.

Now I am inclined to examine the judgment and decree passed by the learned Courts below.

The learned Senior Assistant Judge, Sadar, Mymensingh shown his emotional explanation as to the given facts of this case by keeping himself into the facts of this case without adequately considering the legal aspects and thereby came to a unlawful conclusion to decree the suit on the basis of the following findings:

“উক্ত প্রদর্শনীঃ চিহ্নিত কাগজাত পর্যা-লাচনায় প্রতীয়মান হয় যে, ১ নং বিবাদী স্কুলটি প্রতিষ্ঠার পর থে-ক এম্যানু-য় ফলাফল ভা-লা করছি-লা। সুতরাং এক্ষেত্রে বিবাদীপক্ষের দাবী অ-যৌক্তিক মর্মে প্রতীয়মান হয়। প্রধান শিক্ষক হিসা-ব অসদাচরন সম্প-র্ক বাদী ব-লন ১৯৭৯ স-নর চাকুরী বিধির ১১ ধারায় উ-ল্লিখিত মত তিনি কথ-না কোন প্রকার অসদাচরন ক-রন নি এবং বিবাদীপক্ষও সুনির্দিষ্ট ভা-ব এবিষ-য় কোন অভি-যোগ উত্থাপন ক-রননি। সহকারী শিক্ষক মোঃ রফিকুল ইসলাম-র আনীত অভি-যোগ ০১/০৪/০৮ ইং তারিখেই নিষ্পত্তি হয়েছে। এভাবে দেখা যায় যে, বাদীর বিরূ-দ্ধ আনীত অভি-যোগসমূহ একতরফাভা-ব আম-ল নি-য় বিধিবহির্ভূতভা-ব গঠিত তদন্ত আদালত তদন্ত ক-র-ছেন এবং শাস্তি সুপারিশ ক-র মতামত প্রদান ক-র-ছেন এবং উক্তরূপ মতামতের ভিত্তিতে ০৯/০৭/০৯ তারিখের পত্রমূলে বাদীকে চাকুরী চ্যুত ক-রন যা আদাল-তর নিকট প্রহসনমূলক ম-র্ম প্রতীয়মান হ-য়-ছ।”

The learned Appellate Court below concurrently found in favour of the present opposite party after absolute misinterpretation of law, in particular regulation 12 of the Service Regulation, 1979 and other laws therefore came to a wrongful conclusion to affirm the judgment of the trial court on the basis of the following relevant portion of this judgment. There is nothing in the Regulation where an aggrieved person can go if any order of dismissal is made under the Regulation. If there is no specific forum for preferring appeal against the order of dismissal in the Regulation it cannot be said that the plaintiff did not avail the opportunity to set aside the order of dismissal. Therefore the “Rule of Exhaustion” will apply in this case.

However, once the decision of dismissal of Executive Committee is communicated to the plaintiff, it does not mean that the decision was final. Otherwise there was no reason to communicate the decision to the plaintiff and other superior authority like the Education Board and Directorate. Thus it was a complete violation of Regulation 12 and 14. It may be mentioned that once the civil suit is filed against the order dismissal any approval from the Board taken after the decision cannot turn the illegal order as legal.

From the above to judgments it transpires to me that the present opposite party was only informed about the decision of dismissal taken by the managing committee of the school such kinds of communication cannot be considered as a finality regarding imposition of penalty of dismissal upon any teacher but the learned Appellate Court undesirable to consider that communication of later dated 09.07.2009 as a finality. The law provides re-examination of facts and decision taken by a managing committee of a school which may decide either way therefore he has wrongly taken that there is no forum of appeal by the present opposite party. In this regard from Exhibit-36 dated 02.11.2009 is the regulation of appeal and arbitration committee of “মাধ্যমিক ও উচ্চ মাধ্যমিক শিক্ষা বোর্ড, ঢাকা।” the resolution of the said committee reads as follows:

“২। আ-লাচ্য বিষয়ঃ জনাব মোঃ রফিকুল ইসলাম, প্রধান শিক্ষক, রাই-ফল উচ্চ বিদ্যালয়, খাগডহর, সদর, ময়মনসিংহ- এর বিরুদ্ধে আনীত অভি-যোগ সমূহ : (ক) প্রধান শিক্ষক হি-স-ব আর্থিক অনিয়ম, (খ) প্রশাসনিক ব্যবস্থাপনায় অদক্ষতা, (গ) একা-ডমিক অদক্ষতা, (ঘ) অসদাচরন, (ঙ) সহকারী শিক্ষক জনাব মোঃ রফিকুল ইসলাম কর্তৃক আনীত অভি-যা-গর প্রেক্ষি-ত তদন্ত কমিটির সুপারিশ ও গৃহীত কার্যক্রম এবং (চ) একই শিক্ষক কর্তৃক সভাপতি ম্যা-নজিং কমিটি বরাবর প্রধান শিক্ষ-কর বিরুদ্ধে অসদাচর-ণর অভি-যোগ দা-য়র ইত্যাদি কার-ন বিদ্যাল-য়র ম্যা-নজিং কমিটির সিদ্ধান্ত অনু-মাদ-নর বিষয় বি-বচনা।

সিদ্ধান্তঃ আদাল-ত মামলা চলমান। মামলা নিষ্পত্তি না হওয়া পর্যন্ত বিদ্যালয়ের প্রধান শিক্ষক জনাব মোঃ রফিকুল ইসলাম-কে বিধি মোতা-বক খোর-পাষ ভাতা প্রদান করার জন্য ম্যানেজিং কমিটিকে পত্র দেয়ার সিদ্ধান্ত গৃহীত হয়।”

The above mater shows that the appeal and arbitration committee started the proceedings of examination and re-examination after filing of the present suit therefore the finding of the Appellate Court is an unlawful decision that there was no forum for further consideration for any aggrieved teacher.

In view of the above decision, the Board of Intermediate and Secondary Education, Dhaka is hereby directed to place the matter to the opposite party No. 2, the Chairman, Secondary and Higher Secondary Board, Dhaka and also to the appeal and arbitration committee under the Dhaka Board. Above these bodies are hereby directed to take necessary steps on the matter of the dismissal order passed by the managing committee of the Border Guard Public High School and college, Sadar, Mymensingh as per provision of the Recognised Non-government Secondary School Teachers (Board of Intermediate and Secondary Education, Dhaka) Terms and Conditions of Service Regulations, 1979 in order to reach to a finality of the

proceeding within 30(thirty) days from the date of receipt of this judgment and order.

After examining the above two concurrent judgments passed by the learned Courts below I am surprised that the learned Appellate Court below wrongly interpreted the require provision of law and therefore came to a wrongful conclusion which is not sustainable under law. I am, therefore inclined to interfere into the judgment and decree passed by the learned Appellate Court below.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The Section is directed to communicate this judgment and order to the concern Court and also to send down the lower court record immediately.